

DETAILED CRIMINAL CASE FILE

Cybercrime / Alleged Digital Investment Fraud

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

CRIMINAL PETITION NO. 2458 OF 2023

Vikram Singh & Ors. v. State of Karnataka & Anr.

1. COVER AND CASE IDENTIFICATION

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

CRIMINAL PETITION NO. 2458 OF 2023

(Connected with FIR No. 112/2023 of Cyber Crime Police Station, Bengaluru)

Vikram Singh & Ors. v. State of Karnataka & Anr.

Case category: Criminal petition concerning alleged cyber-enabled investment fraud; petition stated to seek quashing of an FIR under Section 482 of the Code of Criminal Procedure, 1973, with the supplied order granting partial relief in the form of bail.

Alleged offences: Sections 420, 468 and 471 of the Indian Penal Code, 1860, and Section 66D of the Information Technology Act, 2000.

This 15-page educational case file expands the facts, submissions, exhibit descriptions, issues, reasoning, bail conditions and procedural consequences contained in the text supplied. It separates allegations, submissions and prima facie observations from final findings.

***Important:** The supplied text has not been independently verified as an authentic reported judgment. No missing fact, technical detail, precedent or court finding is invented. This is not a certified court record or legal advice.*

2. EXECUTIVE SUMMARY AND PROCEDURAL POSTURE

The supplied text concerns FIR No. 112/2023 registered at the Cyber Crime Police Station, Bengaluru. The complainant alleges that the petitioners induced an investment of ₹50,00,000 in a digital trading platform that was allegedly a sham, and then absconded with the money. These statements are allegations, not findings of guilt after trial.

The petitioners are described as directors of M/s. TechNova Solutions Pvt. Ltd. Their counsel characterises the matter as a civil dispute arising from a software development contract, denies absconding, and argues that the forensic report does not conclusively link the petitioners personally to creation of the alleged code because several employees used the laptops.

The State opposes quashing. It says the petitioners masterminded the fraud, relies on call detail records said to show communication with victims, and argues that Section 66D of the Information Technology Act applies because computer resources were used to cheat by personation.

The supplied judgment does not state that the FIR is quashed. It says the material provides prima facie support for continuing the criminal process. It then considers custody: the petitioners had reportedly been in judicial custody for over 60 days, the investigation was complete, the charge sheet had been filed and no further recovery was required.

The operative result is partial allowance and release on bail for Vikram Singh and Ananya Sharma, subject to a personal bond of ₹50,000 with two sureties for a like amount, passport surrender and a restriction on leaving India without prior permission. The exact scope should be checked against the authentic order, especially because the cause title says “& Ors.”

3. PARTIES AND INSTITUTIONS

Petitioners/accused: The cause title names Vikram Singh & Ors. The operative paragraph specifically names Vikram Singh and Ananya Sharma for release on bail. Both are described as directors of M/s. TechNova Solutions Pvt. Ltd. The supplied text does not state the company's registration details, the exact duties of each director, or the acts individually attributed to each accused.

A director's title alone does not establish personal creation of software, control of a server, receipt of funds, or criminal intention. Those matters would need to be evaluated from the complaint, financial records, electronic evidence, witness statements and other material in the actual case.

Respondents: The State of Karnataka is the prosecuting respondent. "State of Karnataka & Anr." indicates another respondent, apparently the complainant, but the supplied extract does not provide that person's name or address. This file therefore refers to that party as the complainant/respondent No. 2.

Police and forensic institutions: The Cyber Crime Police Station, Bengaluru, registered the FIR and conducted the investigation. A Forensic Science Laboratory report is mentioned, but the laboratory name, examiner, methods, hash values and full findings are not included.

Trial Court: The text says a bail application was rejected on 10.04.2023. It does not identify the court by name or reproduce the reasons for rejection.

4. FACTUAL CHRONOLOGY

Before 15 March 2023: The complainant allegedly invested ₹50,00,000 in a digital trading platform after representations attributed to the petitioners. The supplied text does not state the platform's name, the exact representations, first-contact date, payment dates, recipient accounts or promised returns.

15 March 2023: FIR No. 112/2023 was registered, according to Exhibit P-1. The offences listed are IPC Sections 420, 468 and 471, and IT Act Section 66D.

18 March 2023: Exhibit P-3, the seizure panchnama, records the seizure of two laptops and three mobile phones. The extract does not identify serial numbers, ownership, seizure location, sealing procedure or chain-of-custody transfers.

During investigation: The agency obtained call detail records for January–March 2023 and an FSL report concerning alleged trading software extracted from the laptops. Exact dates and technical details are not supplied.

10 April 2023: The Trial Court reportedly rejected the petitioners' bail application. The application is Exhibit D-1 and the order sheet is Exhibit D-2.

By 22 May 2023: The High Court text says the petitioners had spent more than 60 days in judicial custody, the investigation was complete, and the charge sheet had been filed. The order is dated 22.05.2023.

The source does not state the arrest date, charge-sheet filing date, exact remand history, or whether later courts modified the order.

5. COMPLAINT AND PROSECUTION THEORY

The complaint alleges that the digital trading platform was a sham and that the petitioners induced the complainant to transfer ■50,00,000. The prosecution theory appears to be that representations about the platform created a false impression of a genuine investment or trading service. The actual words used, platform interface, promised returns and transaction trail are not reproduced.

The State relies on the seized devices, CDRs and FSL report. It says the CDRs establish constant communication between the petitioners and victims. The supplied text does not provide telephone numbers, subscriber details, call durations, locations or the identities of other alleged victims.

The State further submits that fraudulent software was hosted on servers controlled by the company. The judgment says Exhibits P-3 and P-5 provide prima facie evidence supporting that proposition. The extract does not set out the server logs or explain the technical method used to attribute server control.

At the preliminary stage, the court may assess whether allegations and material justify continuation of proceedings without finally determining guilt. The words “prima facie” should not be treated as a conviction or a final finding that every element of every offence has been proved.

A proper case analysis should separate the complainant’s allegations, the investigating agency’s evidence, the State’s submissions, the defence response and the court’s conclusions. These categories are not interchangeable.

6. PETITION UNDER SECTION 482 CrPC

The petition is stated to invoke Section 482 of the Code of Criminal Procedure, 1973, seeking to quash the FIR and proceedings arising from it. Section 482 preserves the High Court's inherent power to make orders necessary to give effect to the Code, prevent abuse of court process, or otherwise secure the ends of justice.

Quashing and bail are different remedies. Quashing would terminate the proceedings covered by the order; bail permits release from custody while the criminal case continues. The supplied judgment does not say that the FIR or charge sheet was quashed.

The petitioners argue that the dispute arose from a software development contract and is essentially civil. The court rejects that argument as a basis for quashing at this stage, reasoning that deception is evident from the initial representations to the complainant.

The supplied text then grants bail based on custody-related circumstances. Because the petition is introduced as a Section 482 quashing petition but the operative relief is bail, the complete official order should be consulted to confirm the exact prayers, procedural history and legal basis for the bail direction.

The case file therefore describes only what the supplied extract states and does not attempt to reconcile missing procedural details by assumption.

7. ALLEGED OFFENCES AND LEGAL RELEVANCE

IPC Section 420: The FIR lists cheating and dishonestly inducing delivery of property. Relevant factual questions include what representations were made, whether they were false when made, whether the accused had the required dishonest intention, whether the complainant relied on them, and whether money was delivered as a result. A later contractual failure alone does not automatically establish cheating.

IPC Section 468: This provision concerns forgery for the purpose of cheating. The supplied extract does not identify the specific document or electronic record alleged to have been forged, who created it, or the evidence supporting that allegation.

IPC Section 471: This concerns fraudulent or dishonest use as genuine of a document or electronic record known or believed to be forged. The source does not identify the record allegedly used or explain how knowledge is attributed to each petitioner.

IT Act Section 66D: This provision addresses cheating by personation using a communication device or computer resource. The State says the platform involved computer resources and personation. The exact identity allegedly impersonated or the precise method of personation is not described in the supplied extract.

The provisions are listed because they appear in the supplied text. This educational file does not independently conclude that any offence is established.

8. EXHIBIT REGISTER

Exhibit P-1 — FIR No. 112/2023 dated 15.03.2023. It records registration of the case and the offences invoked. The FIR is relevant to the initial version but does not by itself prove every allegation.

Exhibit P-2 — Complaint letter and bank transaction statements. The complaint contains the complainant's version; bank records may show dates, amounts and recipient accounts. The extract does not provide transaction references or a reconciliation of the alleged ₹50,00,000.

Exhibit P-3 — Seizure panchnama dated 18.03.2023. It records two laptops and three mobile phones. A complete review would examine device identifiers, seizure circumstances, signatures, sealing and custody records.

Exhibit P-4 — CDRs for January–March 2023. The State says they establish communication between the petitioners and victims. CDRs are communication metadata; their significance depends on subscriber attribution, context and corroboration.

Exhibit P-5 — FSL report. It reportedly confirms extraction of alleged fraudulent trading software from the laptops. The defence disputes individual attribution because multiple employees used the devices. The full report and forensic methodology are not included.

Exhibit D-1 — Bail application. The application was filed before the Trial Court, but its detailed grounds are not reproduced.

Exhibit D-2 — Order sheet dated 10.04.2023. It records rejection of bail according to the supplied text. The reasons for rejection are not supplied and should not be invented.

9. DIGITAL FORENSICS AND EVIDENCE LIMITATIONS

The digital evidence raises separate questions: whether software was present on a device, whether the software was fraudulent, who created or modified it, who controlled the relevant server, and whether each accused had the required knowledge and intention. Proof of one question does not automatically answer all the others.

A complete forensic record may include device make and serial number, seizure and receipt details, forensic image method, hash values, write-protection measures, extraction tools, timestamps, user profiles and custody transfers. The supplied extract does not provide these particulars, so this file cannot independently assess forensic integrity.

Where devices are shared among employees, attribution may require login records, source-code history, repository logs, file timestamps, emails, server logs, access permissions and witness evidence. The defence expressly argues that multiple employees used the laptops; the source does not state whether the prosecution has other attribution evidence.

The label “fraudulent trading software” comes from the supplied text. The technical report would need to explain what the software did, how it allegedly misrepresented trading activity, and how the alleged conduct related to the complainant’s transfer of money. Those details are absent from the extract.

At the bail stage, the court may make a preliminary assessment. At trial, the prosecution must prove the charges under the applicable criminal standard and evidentiary rules. The bail order does not settle authorship, intention or guilt.

10. PETITIONERS' SUBMISSIONS

Counsel for the petitioners, identified as Mr. Rajesh Kumar, submits that the dispute is a civil disagreement arising from a software development contract. The argument is that contractual non-performance should not be converted into criminal prosecution without facts establishing the required criminal elements. The actual contract is not included in the supplied text.

The petitioners deny absconding and say they cooperated with the investigation. The extract does not provide notices, attendance records, correspondence with investigators or other material needed to independently evaluate that submission.

The defence challenges Exhibit P-5, arguing that it does not conclusively link the petitioners to creation of the code because multiple employees used the laptops. This challenges individual attribution, not necessarily the reported presence of software on the devices.

The petitioners seek quashing of the FIR and proceedings. The supplied judgment does not grant that relief. It concludes that the alleged initial deception and the materials described are sufficient, at the preliminary stage, to resist the argument that the case is purely civil.

The source does not say that the petitioners denied every communication or transaction, produced a separate expert report, or established that the complainant received all promised services. Such details should not be added without the actual petition and records.

11. STATE'S SUBMISSIONS

The Additional Public Prosecutor argues that the petitioners were the masterminds of the alleged fraud. This is the State's submission, not a final finding of guilt. The State relies on the complaint, seized devices, CDRs and FSL report.

The State says the CDRs establish constant communication between the petitioners and victims. To assess that claim, the underlying records, subscriber identities, time periods and context would need to be examined. Call frequency alone does not establish the content or purpose of each communication.

The State also relies on the seizure and forensic materials to contend that fraudulent software was hosted on servers controlled by the company. The supplied judgment treats this as prima facie material, but the underlying server logs and technical reasoning are not reproduced.

On Section 66D of the IT Act, the State argues that computer resources were used to cheat by personation. The extract does not specify the precise identity allegedly impersonated, so the exact factual basis must be checked in the FIR and charge sheet.

The State opposes quashing and contends that the case should proceed. The court's stated approach is to allow the prosecution to continue while separately deciding that further custody is not necessary.

12. ISSUES AND COURT'S REASONING

Main question: Whether the FIR allegations, taken at face value, disclose cognizable offences under the IPC and IT Act, or whether the matter is merely a civil dispute given a criminal colour.

Prima facie evidence: Referring to Exhibits P-3 and P-5, the judgment says there is prima facie evidence that fraudulent software was hosted on servers controlled by the petitioners' company. The extract does not set out the complete technical reasoning, so no additional forensic finding is attributed to the court here.

Civil versus criminal dispute: The judgment does not accept the civil-breach argument as a ground to quash at that stage. It says the element of deception is evident from the initial representations to the complainant. Those representations are not reproduced in the extract, and the observation remains preliminary.

Custody: The court notes more than 60 days in judicial custody, completion of investigation, filing of the charge sheet, and no further recovery being required. The seized devices were already with the investigating officer.

Overall approach: The supplied text separates whether the criminal case should continue from whether continued detention is necessary. It does not quash the FIR, but grants bail subject to conditions.

The extract does not include cited precedents, the full statutory analysis, or every submission. The authentic signed order is required for a complete report of the court's legal reasoning.

13. BAIL, CONDITIONS AND EFFECT

The court states that the petitioners had been in judicial custody for over 60 days, investigation was complete, the charge sheet had been filed, and no further recovery was needed. These are the stated reasons for concluding that custodial interrogation was no longer required.

The order directs release on a personal bond of ₹50,000 with two sureties for a like amount, to the satisfaction of the Trial Court. The exact application of the bond and surety wording to each petitioner should be confirmed from the signed order.

The petitioners must surrender their passports to the Trial Court and must not leave India without prior permission. The supplied text does not mention additional conditions such as regular police attendance or restrictions on contacting witnesses, so they are not represented here as actual directions.

Bail is not acquittal. It does not establish that the complaint is false, and it does not terminate the charge sheet or trial. The accused remain required to comply with the conditions and participate in the criminal process as directed.

The Registry is directed to send a copy of the order to the Trial Court and Cyber Crime Police Station for immediate compliance. Release would depend on satisfaction of the bond and surety requirements and completion of the applicable formalities.

14. OPERATIVE ORDER AND PRACTICAL CONSEQUENCES

Paragraph 11: The criminal petition is allowed in part. Vikram Singh and Ananya Sharma are directed to be released on bail in FIR No. 112/2023 of Cyber Crime Police Station, Bengaluru, on a personal bond of ₹50,000 with two sureties for a like amount, to the satisfaction of the Trial Court.

Paragraph 12: The petitioners must surrender their passports to the Trial Court and must not leave India without prior permission.

Paragraph 13: The Registry must transmit a copy of the order to the Trial Court and Cyber Crime Police Station for immediate compliance.

The practical effect, on the wording supplied, is bail relief only. The text does not say the FIR was quashed, the charge sheet was set aside, the petitioners were discharged, or the prosecution ended. The criminal case is therefore treated in this file as continuing, subject to the actual record and any later orders.

The phrase “allowed in part” must be read alongside the complete petition and prayers. Since the petition is introduced as a Section 482 quashing petition but the operative relief is bail, the complete official order is needed to confirm whether connected or alternative prayers were considered.

The signature block identifies the High Court of Karnataka and gives the date 22.05.2023, but the supplied extract does not name the judge or provide a neutral citation or official digital copy. Those details should not be fabricated.

15. CASE CLASSIFICATION, LIMITATIONS AND CHECKLIST

Case type: Criminal proceeding involving alleged cyber-enabled investment fraud. Procedurally, the supplied text describes a criminal petition under Section 482 CrPC seeking quashing of an FIR, with the stated outcome being partial allowance and grant of bail. The alleged offences are IPC Sections 420, 468 and 471, and IT Act Section 66D.

What the supplied text states: FIR number and date; alleged investment amount; company name; listed offences; exhibit descriptions; broad submissions; prima facie reasoning; custody circumstances; bail bond and passport conditions; and order date.

What is missing: The complete FIR and complaint, software development contract, full bank trail, actual CDRs, complete FSL report, charge sheet, full petition and prayer, prosecution objections, reasons in the Trial Court bail order, cited precedents, full coram and verified signed High Court order.

Checklist for an authentic case record: (1) obtain the signed High Court order and current case status; (2) verify the FIR and complaint; (3) review the full petition and State objections; (4) obtain the Trial Court bail order; (5) examine the charge sheet and witness list; (6) review seizure and chain-of-custody records; (7) inspect the full FSL report; (8) authenticate bank and CDR records; and (9) check later orders or appeals.

For academic presentation, label allegations as allegations, arguments as submissions, preliminary observations as prima facie findings, and bail as a custody-related order—not an acquittal. The supplied operative order does not say the accused were convicted or that the FIR was quashed.

End note: This is an expanded educational case study based on the text supplied by the user. It is not an authenticated judgment, certified court document or legal advice.